

tors (*f*), factors (*g*), &c.; and by the recent Bankruptcy Acts (*h*) it is *expressly* enacted that the bankrupt's [*240] *property shall not be taken to comprise property held by the bankrupt in trust for any other person.

4. **Nor the property into which the trust estate has been converted.**—Where the trust estate or fund has been converted into property of a different character, the new acquisition will equally be protected against the effects of the bankruptcy; for the product or substitute of the original thing must follow the nature of the thing from which it proceeded (*a*). Thus, if goods consigned to a factor be sold by him and reduced into money, so long as the money can be identified, as, where it has been kept in a bag, the employer, and not the creditors, will have the benefit of that specific sum (*b*). When money is said to have no *ear-mark*, the meaning is no more than this, that, being the currency of the country, it cannot be followed when once it has passed in circulation (*c*).

[5. **Harris v. Truman.**—So where money was paid into a bank by a firm of brewers, and an agent was allowed to draw upon the account in order to provide himself with funds for purchasing barley to be malted for the brewers, and the agent bought large quantities of barley, and also (although not authorised so to do) of malt, and drew largely upon the account, but in lieu of paying for the barley and malt, misappropriated the moneys which he received and subsequently became a bankrupt, it was held (1) that the moneys drawn out by the agent were impressed with a trust

(*f*) *Howard v. Jemmett*, 3 Burr. 1369, *per* Lord Mansfield; *Ex parte* Butler, 1 Atk. 213, *per* Lord Hardwicke; *Viner v. Cadell*, 3 Esp. 88; *Farr v. Newman*, 4 T. R. 629, *per* Grose J.; *see Ex parte Ellis*, 1 Atk. 101.

(*g*) *Godfrey v. Furzo*, 3 P. W. 186, *per* Lord King; *Tooke v. Hollingworth*, 5 T. R. 226, *per* Lord Kenyon; *L'Apostre v. Le Plaistrier*, cited *Copeman v. Gallant*, 1 P. W. 318; *Delauney v. Barker*, 2 Stark. 539; *Boddy v. Esdaile*, 1 Car. & P. 62; *see Ex parte Dumas*, 2 Ves. 582; S. C. 1 Atk. 232;

Paul v. Birch, 2 Atk. 623; *Ryall v. Rolle*, 1 Atk. 172; *Ex parte* Chion, note (A) to *Godfrey v. Furzo*, 3 P. W. 187.

(*h*) 32 & 33 Vict. c. 71, s. 15; [46 & 47 Vict. c. 52, s. 44.]

(*a*) *See Taylor v. Plumer*, 3 M. & S. 575; *Scott v. Surman*, Willes, 404; [*Ex parte* Cooke, 4 Ch. D. 123.]

(*b*) *Tooke v. Hollingworth*, 5 T. R. 227, *per* Lord Kenyon; *see Taylor v. Plumer*, 3 M. & S. 571.

(*c*) *Miller v. Race*, 1 Burr. 457, *per* Lord Mansfield.